

SENATE BILL 336

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 2 and
Title 40, relative to voting rights.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-29-202, is amended by deleting subdivision (b)(2).

SECTION 2. Tennessee Code Annotated, Section 40-29-202(c), is amended by deleting "unless the person is current in all child support obligations" and substituting "unless the person is compliant with all current child support orders, including orders related to child support arrearages".

SECTION 3. Tennessee Code Annotated, Section 40-29-204, is amended by deleting the following language:

Notwithstanding this part, the following persons shall never be eligible to register
and vote in this state:

and substituting instead:

Notwithstanding this part, the following persons are ineligible to register and vote
in this state, unless at least three (3) years have elapsed since the person's
sentence completion date, and the person has met all other qualifications to
restore their right of suffrage:

SECTION 4. Tennessee Code Annotated, Section 40-29-105, is amended by deleting subdivision (b)(2) and substituting:

(2) A person rendered infamous after July 1, 1986, by virtue of being convicted
of first degree murder, aggravated rape, treason, or voter fraud is ineligible to register

and vote in this state unless at least three (3) years have elapsed since the person's sentence completion date, and the person has met all other qualifications to restore their right of suffrage.

SECTION 5. Tennessee Code Annotated, Section 40-29-105(c)(2)(B), is amended by deleting the subdivision and substituting:

(B) A person convicted of an infamous crime may petition for restoration upon the expiration of the maximum sentence imposed by the court for the infamous crime; provided, that a person convicted of murder, rape, treason, or voter fraud is ineligible to register and vote in this state unless at least three (3) years have elapsed since the person's sentence completion date, and the person has met all other qualifications to restore their right of suffrage;

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.